



Notification Waiver Determination

Volvo Group Australia – Assets comprising Volvo dealership stock and assignable sales contracts of Southside Truck Centre

Acquisition	Volvo Group Australia Pty Ltd (VGA) applied for a notification waiver in respect of its proposed acquisition of certain assets from Southside Agencies (Lismore) Pty Ltd (Southside), relating to Southside's Volvo truck dealership business, as described in the transaction documents provided as part of the application (the Acquisition). The assets to be acquired comprise Volvo, Mack and UD branded trucks and genuine parts, along with certain contracts relating to the business. The Acquisition does not include any real property, employees, or liabilities of Southside.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	31 August 2026

Parties to the Acquisition	The acquirer, VGA, is a subsidiary of Swedish-headquartered AB Volvo. VGA is active in Australia in: • the manufacturing, assembly and wholesale supply of commercial (heavy duty) trucks and related parts under the Volvo, Mack and UD brands (Volvo Dealership Brands); • the importation and wholesale supply of heavy buses; • the operation of six primary commercial vehicle distribution centres across Queensland and NSW, which are involved in the retail supply of commercial trucks and buses, and related parts and servicing for trucks and buses under the Volvo Dealership Brands; and • the importation and wholesale supply of marine and industrial engines, related parts and servicing. The broader Volvo Group is active in Australia in the wholesale supply of Volvo Construction Equipment and the provision of financial services in connection with the acquisition of trucks and buses. The target, Southside, owns and operates commercial vehicle dealerships under the name "Southside Truck Centre" from premises located at Coffs Harbour and South Lismore, NSW. The business is involved in the retail supply of new and used trucks, including the Volvo Dealership Brands together with a range of third-party brands including Hino, Western Star, MAN and Dennis Eagle, the sale of
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	genuine parts and accessories, and the supply of after-sales services including vehicle servicing and repairs.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is very small horizontal overlap between VGA and Southside in the retail supply of commercial vehicles in the Coffs Harbour to Lismore region of NSW b. there are alternative wholesale and retail suppliers of commercial vehicles to customers in the Coffs Harbour to Lismore region of NSW, as well as in NSW and Southern Queensland more broadly c. there are alternative suppliers of commercial vehicle spare parts, servicing and repairs in the Coffs Harbour to Lismore region of NSW d. there is a low risk of foreclosure or other concerning vertical effects resulting from exclusionary conduct post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act